

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3800

By: Sneed

AS INTRODUCED

An Act relating to professions and occupations; amending 59 O.S. 2021, Section 1151.2, which relates to roofing contractor definitions; expanding definitions to include residential roofers; amending 59 O.S. 2021, Section 1151.2a, as amended by Section 1, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.2a), which relates to the enforcement authority over roofers; expanding duties to include residential roofers; amending 59 O.S. 2021, Section 1151.3, which relates to registration, fines, and penalties; adding residential roofers; modifying fees; amending 59 O.S. 2021, Section 1151.4, which relates to the construction industry board; adding endorsements under duties; modifying certain duties; amending 59 O.S. 2021, Section 1151.5, as amended by Section 2, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.5), which relates to obtaining roofing contractor endorsement; modifying certain disqualifications based on criminal history; amending 59 O.S. 2021, Section 1151.7, which relates to the roofing contractor certificate; clarifying qualifying parties; emphasizing prime contractor or registered and endorsed roofing contractor responsibilities; requiring certain mandatory reporting for criminal pleas; amending 59 O.S. 2021, Section 1151.8, which relates to registration fees; modifying when fees are due; amending 59 O.S. 2021, Section 1151.9, which relates to applicability of Roofing Contractor Registration Act; modifying applicability of registration or endorsement in certain situations; amending 59 O.S. 2021, Section 1151.10, as amended by Section 3, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.10), which relates to issuance or denial of registration; modifying applicable dates; removing appeal process; amending 59 O.S. 2021,

1 Section 1151.11, which relates to changes in
2 identifying information; removing requirement to
3 suspend inactive registration; amending 59 O.S. 2021,
4 Section 1151.12, which relates to certificate of
5 renewal; modifying certain references; removing
6 revoking requirement for failure to renew; amending
7 59 O.S. 2021, Section 1151.14, which relates to
8 filing a complaint; adding endorsements and
9 residential roofers; amending 59 O.S. 2021, Section
10 1151.15, as amended by Section 1, Chapter 200, O.S.L.
11 2025 (59 O.S. Supp. 2025, Section 1151.15), which
12 relates to complaints; changing authorization from
13 Board to registrar for investigating complaints;
14 amending 59 O.S. 2021, Section 1151.17, which relates
15 to applications for building permits; adding
16 residential endorsements; amending 59 O.S. 2021,
17 Section 1151.18, as amended by Section 2, Chapter
18 200, O.S.L. 2025 (59 O.S. Supp. 2025, Section
19 1151.18), which relates to verification of
20 contractor's certificate number; adding endorsement
21 numbers as disclosure; amending 59 O.S. 2021, Section
22 1151.22, which relates to workers' compensation
23 insurance; requiring direct supervision of a
24 qualifying party; amending 59 O.S. 2021, Section
1151.25, which relates to commercial roofing
examination; requiring continuing education;
grandfather clause; granting continuing education
approval to the Committee of Roofing examiners;
amending Section 4, Chapter 368, O.S.L. 2025 (59 O.S.
Supp. 2025, Section 1151.25a), which relates to
residential roofing endorsements; modifying when the
date this provision goes into effect; requiring
continuing education credit; amending 59 O.S. 2021,
Section 1151.26, which relates to establishment of
committee of roofing examiners; adding residential
roofing endorsement in certain provisions; amending
59 O.S. 2021, Section 1151.27, which relates to the
establishment of the Committee of Roofing Examiners;
adding residential roofing endorsements under powers
and duties; amending 59 O.S. 2021, Section 1151.28,
which relates to the Roofing Hearing Board; adding
residential roofers; repealing Section 5, Chapter
368, O.S.L. 2025, which relates to an effective date;
and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1151.2, is amended to read as follows:

Section 1151.2. As used in the Roofing Contractor Registration Act:

1. "Advertise" means any written publication, dissemination, solicitation, contract, bid, promotional item, or circulation which is intended to directly or indirectly induce any person to contract for roofing construction services with the advertiser, including, but not limited to, business cards, telephone directory display advertisements, vehicle signage, radio, television and electronic solicitations;

2. "Applicant" means the qualifying party, or if no qualifying party, any person applying under the Roofing Contractor Registration Act for a roofing contractor registration to be issued by the Construction Industries Board;

3. "Board" means the Construction Industries Board;

4. "Committee" means the Committee of Roofing Examiners;

5. "Homeowner" means one who owns and resides in, or who resides in, or who contracts for the purchase, construction, remodeling or repairing of a residence;

6. "Nonresident contractor" means any contractor who has not established and maintained a place of business as a roofing contractor in this state within the preceding year, or who claims

1 residency in another state, or who has not submitted an income tax
2 return as a resident of this state within the preceding year;

3 7. "Owner" means the person who owns the property or is a
4 lessee of the property;

5 8. "Person" means any natural person, firm, limited or general
6 partnership, corporation, association, limited liability company,
7 trust, association, other legal entity and any organization capable
8 of conducting business, or any combination thereof acting as a unit,
9 unless the intent to give a more limited meaning is disclosed
10 clearly by the Roofing Contractor Registration Act;

11 9. "Prime contractor" means a general contractor, commercial
12 contractor, or other contractor who contracts directly with the
13 owner for construction trade work ~~in~~ covering multiple trade areas
14 and engages endorsed contractors to perform the work as required by
15 law, and who does not advertise for endorsed contractor work unless
16 he or she are endorsed for the work as required by law;

17 10. "Project manager" means one who manages construction
18 projects consisting of work involving multiple trades;

19 11. "Public contract" means a contract with the State of
20 Oklahoma, its political subdivisions, or any board, commission, or
21 department thereof, or with any board of county commissioners, or
22 with any city council, school board, or with any state or municipal
23 agency, or with any other public board, body, commission, or agency
24 authorized to award contracts for the construction or reconstruction

1 of public works and includes subcontracts undertaken to perform
2 works covered by the original contract or any part thereof;

3 12. "Qualifying party" means a natural individual person who is
4 a registrant and an officer or owner of the corporation, a member of
5 the limited liability company, or a general partner of the limited
6 liability partnership, and who is actively engaged in ~~the work~~
7 ~~undertaken by the registrant~~ roofing contractor work for which a
8 registration is required pursuant to the Roofing Contractor
9 Registration Act who meets the experience and ability requirements
10 for registration on behalf of the registrant associated with and
11 responsible for all roofing contractor work of such entity;

12 13. "Registrar" means the Construction Industries Board or any
13 person designated by the Board to administer the provisions of the
14 Roofing Contractor Registration Act;

15 14. "Registration" means the process of applying for an initial
16 or renewal registration which upon approval is exhibited by a
17 registration number and card issued to a qualifying party pursuant
18 to the Roofing Contractor Registration Act;

19 15. "Registration number" means the roofing registration number
20 issued to a qualifying party by the registrar ~~to the registrant's~~
21 ~~qualifying party;~~

22 16. "Registrant" means a holder of a roofing registration
23 issued pursuant to the Roofing Contractor Registration Act and is
24

1 the qualifying party unless any required endorsement is in inactive
2 endorsee status;

3 17. "Residence" means a single structure for residential
4 occupancy or use which is a detached one- to four-family dwelling or
5 a multiple single-family dwelling (townhouse) not more than three
6 stories/floors above grade plane in height with a separate means of
7 egress, and any appurtenances thereto, which is intended for use as
8 a primary habitation and is in compliance with the International
9 Residential Code, as adopted by the Oklahoma Uniform Building Code
10 Commission;

11 18. "Roofing contractor" means any person, including a
12 subcontractor and nonresident contractor, engaged in the business of
13 commercial or residential roofing contractor work, or who himself or
14 herself, or through another, attempts to or advertises, holds
15 himself or herself out as having, or purports to have, the capacity
16 to undertake roofing contractor work, or offers to engage in or
17 solicits roofing installation-related services, including
18 construction, installation, renovation, remodeling, reroofing,
19 repair, maintenance, alteration, and waterproofing, unless
20 specifically exempted in the Roofing Contractor Registration Act,
21 who is to be properly qualified and endorsed as may be required
22 pursuant to the act. Roofing contractor shall not mean:
23
24

- a. a person engaged in the demolition of a structure or the cleanup of construction waste and debris that contains roofing material,
- b. a person working under the direct supervision of the ~~roofing contractor~~ qualifying party who is hired either as an employee, day laborer, or contract laborer whose payment, received in any form, from the roofing contractor is subject to self-employment tax,
- c. a person working on his or her own property or that of an immediate relative and such person is not receiving any compensation, or
- d. a person acting as a handyman who is receiving compensation from the property owner and who is performing the roofing repair in conjunction with other repairs to the property and who does not perform more than two roofing jobs per year;

19. "Roofing contractor work" means the installation, fabrication or assembly of equipment or systems included in roofing systems as defined in the International Building Code and the International Residential Code, as adopted by the Oklahoma Uniform Building Code Commission, and which codes are hereby adopted and incorporated by reference. Roofing construction work includes, but is not limited to, installation, renovation, remodeling, reroofing, reconstructing, repair, maintenance, improvement, alteration, and

1 waterproofing, unless specifically exempted in the Roofing
2 Contractor Registration Act.

3 a. "Commercial roofing contractor work" means work done
4 on commercial, industrial or public building roofing
5 systems or structures as defined in the International
6 Building Code, as adopted by the Oklahoma Uniform
7 Building Code Commission; except it does not mean
8 buildings used for commercial purposes having
9 equivalent or substantially the same roofing
10 requirements as a "residence" defined herein,
11 including but not limited to business offices
12 converted from a structure that formerly was a
13 residence, and

14 b. "Residential roofing contractor work" means work done
15 on roofing systems as defined in the International
16 Residential Code, as adopted by the Oklahoma Uniform
17 Building Code Commission, or as defined as a
18 "residence" herein; including buildings used for
19 commercial purposes having asphalt shingles, tile
20 shingles, synthetic shakes, wood shakes or other
21 comparable materials applied to a sloped roof equal to
22 the same roofing requirements as a "residence" defined
23 herein, including but not limited to business offices
24

1 converted from a structure that formerly was a
2 residence;

3 20. "Roofing Hearing Board" means the Roofing Hearing Board
4 which shall consist of a designee of the Construction Industries
5 Board, as chair, and the members of the Committee of Roofing
6 Examiners;

7 21. "Subcontractor" means one who contracts with a prime
8 contractor, general contractor, residential contractor, project
9 manager, property manager, another subcontractor, or another entity
10 for roofing contractor work and who is registered and endorsed for
11 the work as required by law;

12 22. "Variance" means the use of an alternative material or
13 method of construction from that prescribed in the International
14 Building Code or the International Residential Code or other
15 approved documents by the Oklahoma Uniform Building Code Commission
16 for use at a particular location or project specified in the
17 variance application;

18 23. "Variance and Appeals Board" means the Oklahoma State
19 Roofing Installation Code Variance and Appeals Board;

20 24. "Labor-only crews" means a crew that only provides labor
21 and is working directly for a registered roofing contractor that
22 possesses a proper current roofer endorsement in good standing and
23 is under the direct supervision of that endorsed roofer party to
24 perform the installation of asphalt shingles, tile shingles,

1 synthetic shakes, wood shakes or other comparable materials to a
2 sloped roof and to complete roofing work and does not provide any
3 materials; and

4 25. "Inactive endorsee" means the category status of a
5 registered roofing contractor who has obtained an endorsement by
6 examination and maintains a current endorsement but does not hold
7 the insurance for the roofing firm and is not the qualifying party
8 for the roofing firm, and shall not act as the qualifying party
9 authorized to engage in roofing work for the roofing firm unless and
10 until first becoming an active endorsee by submitting an
11 application, meeting all qualifications and receiving an active
12 endorsement;

13 26. "Endorsed roofing contractor" means a roofing contractor as
14 defined in this act who is properly registered and endorsed pursuant
15 to the requirements for commercial or residential roofing contractor
16 endorsement and does not include labor-only crews as they are exempt
17 from endorsement;

18 27. "Roofing firm" means a firm, limited or general
19 partnership, corporation, association, limited liability company,
20 trust, association, other legal entity or any organization capable
21 of conducting business, or any combination thereof acting as a unit,
22 unless the intent to give a more limited meaning is disclosed
23 clearly by the Roofing Contractor Registration Act, that is
24 registered with the Oklahoma Secretary of State and has an

1 associated qualifying party registered and endorsed pursuant to this
2 act who is responsible for all roofing contractor work of such
3 entity; and

4 ~~29.~~ 28. "Prefabricated- or pre-engineered-metal-building
5 erector" means the labor necessary to construct the components of a
6 prefabricated- or pre-engineered-metal-building package, known as
7 PEMB, as defined by the Construction Science Institute and
8 Construction Specifications Institute in Division 13, Special
9 Construction: Metal Building Systems.

10 SECTION 2. AMENDATORY 59 O.S. 2021, Section 1151.2a, as
11 amended by Section 1, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025,
12 Section 1151.2a), is amended to read as follows:

13 Section 1151.2a. A. The Construction Industries Board is
14 authorized to administer and enforce the Roofing Contractor
15 Registration Act.

16 B. 1. The Construction Industries Board ~~is authorized to~~
17 shall administer and enforce the commercial and residential roofer
18 endorsement provisions of the Roofing Contractor Registration Act.

19 2. The Construction Industries Board shall ~~have the authority~~
20 ~~to~~ administer and enforce the provisions of the commercial and
21 residential roofer endorsement provisions of the Roofing Contractor
22 Registration Act, including the authority to:

- 23 a. establish the examination and continuing education
24 requirements and procedures for endorsements of

1 persons desiring or intending to engage, or are
2 engaging in the business or trade of a commercial or
3 residential roofing contractor with the advice and
4 input from the Committee of Roofing Examiners using
5 assistance from a third-party vendor as necessary and
6 appropriate,

7 b. establish and enforce the minimum standards of
8 commercial and residential roofer endorsements in this
9 state and rules promulgated pursuant to the commercial
10 and residential roofer endorsement provisions of the
11 Roofing Contractor Registration Act with the advice
12 and input from the Committee of Roofing Examiners,

13 c. promulgate, prescribe, amend, and repeal rules
14 necessary to implement the provisions of the
15 commercial and residential roofer endorsement of the
16 Roofing Contractor Registration Act with the advice
17 and input from the Committee of Roofing Examiners,

18 d. issue, renew, suspend, revoke, modify, or deny
19 endorsements to engage in commercial and residential
20 roofing contractor work pursuant to the Roofing
21 Contractor Registration Act,

22 e. conduct investigations for the purpose of inspecting
23 commercial and residential roofer endorsements for
24 compliance with the commercial or residential roofer

- endorsement provisions of the Roofing Contractor Registration Act, and of the rules of the Board promulgated pursuant thereto, into the qualifications of applicants and allegations of violations,
- f. establish and levy administrative fines against any person who violates any of the provisions of the commercial or residential roofer endorsement standards of the Roofing Contractor Registration Act or any rule promulgated pursuant thereto, not to exceed ~~five percent (5%) of the commercial job~~ Five Thousand Dollars (\$5,000.00). For any residential job, on a first violation, the Board may levy an administrative fine not to exceed Five Hundred Dollars (\$500.00); on any second violation, levy an administrative fine not to exceed One Thousand Dollars (\$1,000.00); on a third violation, levy an administrative fine not to exceed Three Thousand Five Hundred Dollars (\$3,500.00); and for any subsequent violation, revoke the registration and commercial or residential roofer endorsement,
- g. initiate disciplinary proceedings and provide hearings on any person who violates any of the provisions of the commercial and residential roofer endorsement standards of the Roofing Contractor Registration Act or any rule promulgated pursuant thereto,

- 1 h. request prosecution of and initiate injunctive
2 proceedings against any person who violates any of the
3 provisions of the commercial and residential roofers
4 endorsement in the Roofing Contractor Registration Act
5 or any rule promulgated pursuant to the commercial or
6 residential roofer endorsement of the Roofing
7 Contractor Registration Act, and
- 8 i. exercise all incidental powers as necessary and proper
9 to implement and enforce the provisions of the
10 commercial and residential roofer endorsement of the
11 Roofing Contractor Registration Act and the rules
12 promulgated pursuant thereto.

13 ~~C. 1. The Construction Industries Board shall administer and~~
14 ~~enforce the residential roofer endorsement provisions of the Roofing~~
15 ~~Contractor Registration Act.~~

16 ~~2. The Construction Industries Board shall administer and~~
17 ~~enforce the provisions of the residential roofer endorsement~~
18 ~~provisions of the Roofing Contractor Registration Act, including:~~

- 19 ~~a. establish the examination and continuing education~~
20 ~~requirements and procedures for endorsements of~~
21 ~~persons desiring or intending to engage in the~~
22 ~~business or trade of a residential roofing contractor~~
23 ~~with the advice and input from the Committee of~~

- ~~Roofing Examiners using assistance from a third party vendor as necessary and appropriate,~~
- b. ~~establish and enforce the minimum standards of residential roofer endorsements in this state and rules promulgated pursuant to the residential roofer endorsement provisions of the Roofing Contractor Registration Act with the advice and input from the Committee of Roofing Examiners,~~
- c. ~~promulgate, prescribe, amend, and repeal rules necessary to implement the provisions of the residential roofer endorsement of the Roofing Contractor Registration Act with the advice and input from the Committee of Roofing Examiners,~~
- d. ~~issue, renew, suspend, revoke, modify, or deny endorsements to engage in residential roofing contractor work pursuant to the Roofing Contractor Registration Act,~~
- e. ~~conduct investigations for the purpose of inspecting residential roofer endorsements for compliance with the residential roofer endorsement provisions of the Roofing Contractor Registration Act, and of the rules of the Board promulgated pursuant thereto, into the qualifications of applicants and allegations of violations,~~

- 1 ~~f. establish and levy administrative fines against any~~
2 ~~person who violates any of the provisions of the~~
3 ~~residential roofer endorsement standards of the~~
4 ~~Roofing Contractor Registration Act or any rule~~
5 ~~promulgated pursuant thereto. For any residential~~
6 ~~job, on a first violation, the Board may levy an~~
7 ~~administrative fine not to exceed Five Hundred Dollars~~
8 ~~(\$500.00); on any second violation, levy an~~
9 ~~administrative fine not to exceed One Thousand Dollars~~
10 ~~(\$1,000.00); on a third violation, levy an~~
11 ~~administrative fine not to exceed Three Thousand Five~~
12 ~~Hundred Dollars (\$3,500.00); and for any subsequent~~
13 ~~violation, revoke the registration and residential~~
14 ~~roofer endorsement,~~
- 15 ~~g. initiate disciplinary proceedings and provide hearings~~
16 ~~on any person who violates any of the provisions of~~
17 ~~the residential roofer endorsement standards of the~~
18 ~~Roofing Contractor Registration Act or any rule~~
19 ~~promulgated pursuant thereto,~~
- 20 ~~h. request prosecution of and initiate injunctive~~
21 ~~proceedings against any person who violates any of the~~
22 ~~provisions of the residential roofers endorsement in~~
23 ~~the Roofing Contractor Registration Act or any rule~~
24 ~~promulgated pursuant to the residential roofer~~

1 ~~endorsement of the Roofing Contractor Registration~~
2 ~~Act, and~~

3 ~~i. exercise all incidental powers as necessary and proper~~
4 ~~to implement and enforce the provisions of the~~
5 ~~residential roofer endorsement of the Roofing~~
6 ~~Contractor Registration Act and the rules promulgated~~
7 ~~pursuant thereto.~~

8 SECTION 3. AMENDATORY 59 O.S. 2021, Section 1151.3, is
9 amended to read as follows:

10 Section 1151.3 A. All roofing contractors shall be registered
11 annually by the Board. All registrations shall be nontransferable.
12 It is unlawful for any person to act as a roofing contractor without
13 having a current and valid roofing contractor's registration or act
14 as a commercial or residential roofing contractor without a current
15 and valid ~~commercial~~ roofer endorsement issued pursuant to the
16 Roofing Contractor Registration Act, unless the person is exempt
17 under the Roofing Contractor Registration Act. Evidence of securing
18 a permit, including roofing work from a governmental agency or the
19 employment of a person on a roofing project, shall be accepted in
20 any court as prima facie evidence of the existence of a contract.
21 Engaging in or offering to engage in work without a valid
22 registration and active commercial or residential roofer endorsement
23 as required for roofing contractors or performing roofing services
24 during any period when the roofing contractor's registration is

1 denied, not in good standing, expired, suspended, or revoked or when
2 the required endorsement is not active is a violation of the Roofing
3 Contractor Registration Act. Subcontracting roofing work to an
4 unregistered or unendorsed roofer or improperly endorsed roofing
5 contractor when the work requires an active endorsement is a
6 violation of this act. Failure to provide proof to the registrar on
7 the jobsite of the active current and properly endorsed qualifying
8 party directly supervising the job is a violation of the Roofing
9 Contractor Registration Act for which enforcement action may be
10 taken on each person performing roofing work on the jobsite and each
11 subcontractor up to and including the contractor contracting
12 directly with the owner.

13 Each copy of a roofing contractor's record, which would include
14 responses to any complaints, that is from and verified by the
15 registrar, or a verified statement from the registrar that there is
16 no record as no application was made, shall be received in all
17 courts in this state as prima facie evidence of the facts stated
18 therein.

19 A verified copy of a roofing contractor's administrative
20 citation for unregistered activity or without required commercial or
21 residential roofer endorsement and order of final disposition from
22 the registrar shall be received in all courts in this state as prima
23 facie evidence of the facts stated therein, including establishment
24 thereby of the ~~first~~ offense.

1 B. A person shall not engage or offer to engage in, by
2 advertisement or otherwise, the business nor act in the capacity of
3 a roofing contractor within this state nor shall that person bring
4 or maintain any claim, action, suit, or proceeding in any court of
5 this state related to the person's business or capacity as a roofing
6 contractor without a valid registration and commercial or
7 residential roofer endorsement, when required, continuously while
8 performing the work for which the claim, action, suit, or proceeding
9 is sought, as provided in the Roofing Contractor Registration Act.
10 No ~~business entity~~ person shall advertise or act as a roofing
11 contractor unless such ~~business~~ person is a registered roofing
12 contractor with a valid commercial or residential roofer
13 endorsement, when required, and is in good standing, and is
14 associated with and responsible for all roofing contractor work of
15 such entity. Any ~~business entity~~ person violating the provisions of
16 ~~this subsection~~ the Roofing Contractor Registration Act shall be
17 subject to administrative penalty by the Board not to exceed Five
18 Thousand Dollars (\$5,000.00) for commercial work and not to exceed
19 Three Thousand Five Hundred Dollars (\$3,500.00) for residential
20 work.

21 C. A roofing firm shall only have one qualifying party
22 associated with and responsible for each roofing firm.

23 ~~C. D. A person who fails to obtain a valid registration and~~
24 ~~endorsement when required prior to advertising or offering to engage~~

1 ~~as or acting as a roofing contractor as defined in the Roofing~~
2 ~~Contractor Registration Act, or a person who acts as a roofing~~
3 ~~contractor while his or her registration is not in good standing or~~
4 ~~is suspended or revoked without complying with the required~~
5 ~~disclosure and option for homeowner to cancel the contract~~
6 ~~provisions of subsection I of Section 1151.5 of this title, or a~~
7 ~~person who~~ violates any provision of the Roofing Contractor
8 Registration Act, in addition to any administrative penalties, shall
9 be guilty of a misdemeanor, ~~upon conviction or plea~~ any plea of
10 guilty, nolo contendere or finding of guilt, punishable by a fine
11 not to exceed ~~Five Hundred Dollars (\$500.00)~~ Five Thousand Dollars
12 (\$5,000.00) for each violation. More than one misdemeanor violation
13 in any twelve-month period shall be grounds for the suspension of
14 the registration, and shall cause the person to be ineligible for
15 registration for a period not to exceed twenty-four (24) months
16 after all requirements of the sentence, or deferment of sentence,
17 and probation have been met, including the payment of any
18 restitution or rehabilitative treatment.

19 ~~D. E. In lieu of referring complaints of violations~~ Violations
20 of the Roofing Contractor Registration Act also may be referred to
21 the district attorney for misdemeanor prosecution. ~~the Board in its~~
22 ~~discretion may issue administrative fines to any person up to Five~~
23 ~~Hundred Dollars (\$500.00) for violations of any provision of the~~
24 ~~Roofing Contractor Registration Act or its rules or regulations. A~~

1 ~~person who fails to obtain a valid registration prior to acting as a~~
2 ~~roofing contractor, or a person who acts as a roofing contractor~~
3 ~~while his or her registration or commercial roofer endorsement is~~
4 ~~not in good standing or is suspended or revoked without complying~~
5 ~~with the required disclosure and option for homeowner to cancel the~~
6 ~~contract provisions of subsection I of Section 1151.5 of this title,~~
7 ~~on first offense, may be administratively fined and disciplined~~
8 ~~after notice and opportunity for hearing before the Roofing Hearing~~
9 ~~Board. A person who violates any other provision of the Roofing~~
10 ~~Contractor Registration Act, on first offense within a two-year~~
11 ~~period, may be administratively fined and disciplined by the Roofing~~
12 ~~Hearing Board in its discretion in lieu of referral to the district~~
13 ~~attorney as a misdemeanor, or the matter may be referred to the~~
14 ~~district attorney. Misdemeanor conviction, guilty plea, or nolo~~
15 ~~contendere plea~~ Any plea of guilty, nolo contendere or finding of
16 guilt due to alleged violations of the Roofing Contractor
17 Registration Act shall be grounds for the revocation of the
18 registration and shall cause the person to be ineligible for
19 registration for a period not to exceed twelve (12) months after all
20 requirements of the sentence, or deferment of sentence, and
21 probation have been met, including the payment of any restitution or
22 rehabilitative treatment.

23 ~~E.~~ F. Administrative fines collected pursuant to the Roofing
24 Contractor Registration Act shall be placed in the Roofing

1 Contractor Registration Revolving Fund pursuant to Section 1151.20
2 of this title.

3 ~~F.~~ G. It is the duty of the building official or other
4 authority charged with the duty of issuing roofing permits of any
5 incorporated municipality or subdivision of the municipality or
6 county to refuse to issue a roofing permit for any roofing
7 undertaking which would require a registration pursuant to the
8 Roofing Contractor Registration Act unless the applicant has
9 furnished evidence that he or she is either registered as required
10 or is exempt from the registration requirements of the Roofing
11 Contractor Registration Act.

12 ~~G.~~ H. The Roofing Hearing Board, or its designee, may make
13 application to the appropriate court for an order enjoining the acts
14 or practices prohibited by the Roofing Contractor Registration Act,
15 and upon a showing ~~by the Roofing Hearing Board~~ that the person or
16 firm has engaged in, or is about to engage in, any ~~of the~~ prohibited
17 acts or practices, an injunction, restraining order or other order
18 as may be appropriate shall be granted by the court.

19 SECTION 4. AMENDATORY 59 O.S. 2021, Section 1151.4, is
20 amended to read as follows:

21 Section 1151.4. The Construction Industries Board is authorized
22 to administer the Roofing Contractor Registration Act. In addition
23 to the powers stated in the Construction Industries Board Act, the
24 Board shall have the following powers:

1 1. Exercise all incidental powers and duties necessary to
2 effectuate the provisions of the Roofing Contractor Registration
3 Act;

4 2. Promulgate, adopt, amend, suspend and repeal rules as may be
5 reasonably necessary to effectuate the provisions of the Roofing
6 Contractor Registration Act, the proper performance of its duties,
7 and to define categories and limitations for such registration and
8 endorsement. The rule-making powers of the Construction Industries
9 Board are subject to the Administrative Procedure Act, including
10 those pertaining to emergency or temporary rules or regulations;

11 3. Promulgate forms to implement the provisions of the Roofing
12 Contractor Registration Act. The Board may administer any provision
13 of ~~this act~~ the Roofing Contractor Registration Act through use of
14 the Internet or other technology as deemed necessary or appropriate;

15 4. Issue, refuse to issue, suspend, revoke or deny a
16 registration or endorsement, or take any other action provided by
17 the requirements of the Roofing Contractor Registration Act;

18 5. Collect fees, fines and civil penalties pursuant to the
19 Roofing Contractor Registration Act and the promulgated rules;

20 6. Enter upon public and private property for the purpose of
21 inspecting workers' registrations, endorsements, and roofing work
22 for compliance with the provisions of the Roofing Contractor
23 Registration Act and of the rules of the Board promulgated pursuant
24 thereto;

1 7. Employ personnel and procure such supplies and equipment as
2 may be necessary to carry out and implement the provisions of ~~this~~
3 ~~act~~ the Roofing Contractor Registration Act, subject to budgetary
4 limitations and funding;

5 8. Investigate complaints, qualifications of qualifying parties
6 or applicants for registration or endorsement, and any person to the
7 extent necessary to determine if the person is ~~engaged in the~~
8 violation of the provisions of the Roofing Contractor Registration
9 Act, ~~including unlawful or unregistered activity~~. The Construction
10 Industries Board, in addition to any administrative fine issued, may
11 refer the matter for misdemeanor prosecution, whether or not the
12 person ceases the unlawful ~~and/or~~ unregistered activity;

13 9. Initiate disciplinary proceedings, request prosecution of
14 and initiate injunctive proceedings against any person who violates
15 any of the provisions of the Roofing Contractor Registration Act or
16 any rule promulgated pursuant to the Roofing Contractor Registration
17 Act;

18 10. Reprimand, ~~or~~ place on probation, ~~or both~~, suspend, or
19 revoke any holder of a registration pursuant to the Roofing
20 Contractor Registration Act;

21 11. Administer oaths, order or subpoena the attendance of
22 witnesses, the inspection of records and premises, and the
23 production of books, records, and papers for the investigation of
24 matters that may come before the Board;

1 12. Authority to appoint members who shall serve as a code
2 variance and appeals board;

3 13. Maintain an administrative staff to carry out the
4 responsibilities of the Board and Committee;

5 14. The registrar shall maintain and provide a complete roster
6 listing the names, last-known addresses, and status of all
7 registrants. The registrar may condense or provide an abstract of
8 a roofing contractor's record for public information; provided, a
9 complete record is available for public inspection upon written
10 request; and

11 15. Upon the advice and recommendation of the Committee, the
12 Board may, in its discretion, enter into a written reciprocity
13 agreement with another state if the requirements for registration
14 and endorsement in the other state are deemed by the Committee to be
15 substantially the same or equivalent to the requirements for
16 obtaining an original registration in force and endorsement in this
17 state at the date of such registration, and then issue a
18 registration by reciprocity to a qualified party applicant who is
19 currently licensed or registered to engage in roofing contractor
20 work in another state that has entered into a written reciprocity
21 agreement with the Board.

22 SECTION 5. AMENDATORY 59 O.S. 2021, Section 1151.5, as
23 amended by Section 2, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025,
24 Section 1151.5), is amended to read as follows:

1 Section 1151.5. A. Applications for registration shall be made
2 to the Construction Industries Board in writing on forms approved
3 and provided by the Board and shall be accompanied by the proper
4 fee.

5 B. An applicant or qualifying party whose registration is
6 denied, or the person has a conviction, ~~or pled guilty or nolo~~
7 ~~contendere to a misdemeanor~~ any plea of guilty, nolo contendere or
8 finding of guilt, or otherwise fails to meet the requirements of
9 application, may ~~obtain a hearing before the Committee of Roofing~~
10 ~~Examiners in order to~~ provide with the application additional
11 information in support of the application requirements and any other
12 information showing the applicant's ability and willingness to
13 comply with the requirements of the Roofing Contractor Registration
14 Act, and to protect the public health, safety and welfare.

15 C. To obtain a roofing contractor registration under the
16 Roofing Contractor Registration Act, a qualifying party who is
17 eighteen (18) years of age or older shall submit, on forms the
18 registrar prescribes:

19 1. An application under oath containing a statement:

- 20 a. of the qualifying party's experience and
21 qualifications as a roofing contractor, if any,
22 b. that the qualifying party desires the issuance of a
23 roofing contractor registration certificate,

- 1 c. that the qualifying party has read the Roofing
2 Contractor Registration Act and will comply with the
3 provisions of the Roofing Contractor Registration Act
4 and rules,
- 5 d. that the qualifying party will comply with state laws
6 and local ordinances relating to standards and
7 permits,
- 8 e. that the qualifying party has or has not been
9 registered or licensed as a roofing contractor in
10 another state and whether any disciplinary action has
11 been taken against such registration or license and
12 whether it is currently in good standing, and
- 13 f. that the nonresident qualifying party appoints the
14 Secretary of State as legal service agent for all
15 lawful process to be served upon the applicant for
16 work performed in this state or as otherwise provided
17 in the Roofing Contractor Registration Act;

18 2. The qualifying party's name, physical address and proof
19 thereof, business name, telephone number, address and place of
20 incorporation, if different, information on any other person who
21 will be authorized to act as the business entity, and the
22 applicant's telephone number, if different;

23 3. The entity's federal tax ID number, or the employer's or
24 owner's or qualifying party's Social Security number, and the

1 employer's account number assigned by the Oklahoma Employment
2 Security Commission. The Social Security number information shall
3 remain with the registrar as confidential and privileged except for
4 necessary disclosures to state agencies to verify compliance with
5 requirements with this act, or upon request by law enforcement; and

6 4. A copy of the roofing contractor's certificate of liability
7 insurance shall be filed with the application and shall be not less
8 than Five Hundred Thousand Dollars (\$500,000.00) for residential
9 roofing contractor work and shall not be less than One Million
10 Dollars (\$1,000,000.00) for commercial roofing contractor work.

11 Additionally, the Construction Industries Board shall be listed as a
12 certificate holder. Any insurance company issuing a liability
13 policy to a roofing contractor pursuant to the provisions of the
14 Roofing Contractor Registration Act shall be required to notify the
15 Construction Industries Board in the event such liability policy is
16 canceled for any reason or lapses for nonpayment of premiums. All
17 registrations granted under the Roofing Contractor Registration Act
18 shall be ~~suspended~~ not in good standing on the date of the policy
19 cancellation. The registrar must receive proof of insurance prior
20 to restoring the registration.

21 In addition, the roofing contractor shall submit proof that the
22 contractor has secured workers' compensation coverage satisfactory
23 under the Workers' Compensation Act, or an affidavit of exemption or
24 self-insurance as authorized pursuant to the Workers' Compensation

1 Act. If the registrar deems it appropriate or necessary, the
2 registrar may also require other information to be included on the
3 application form to assist the registrar in registering the person
4 as a contractor.

5 D. The qualifying party applying for a commercial roofer
6 endorsement must provide information on the legal entity, including
7 but not limited to the articles, organizational agreements or
8 documents establishing the legal entity, including a list of the
9 officers, members, managers, partners, or other managing agents of
10 the legal entity. The qualifying party shall also provide a
11 certificate of good standing or a trade name report from the Office
12 of the Secretary of State.

13 E. The registrar shall refuse to register or renew any person
14 if the registrar determines:

15 1. The application contains false, misleading, or incomplete
16 information;

17 2. The applicant fails to provide a certificate of good
18 standing or a trade name report from the Office of the Secretary of
19 State;

20 3. The applicant, qualifying party, or any member of the legal
21 entity fails or refuses to provide any information requested by the
22 registrar;

23 4. The applicant fails or refuses to pay the required fees;
24

1 5. The applicant, qualifying party, or owner or officer or
2 managing member of the legal entity is ineligible for registration
3 due to a suspended or revoked registration in this state;

4 6. The nonresident applicant has a revoked or suspended
5 registration or license required by law for roofing contractors in
6 another state; or

7 7. The applicant, qualifying party, or legal entity has failed
8 or refuses to submit any taxes due in this state.

9 F. The registrar shall notify the applicant in writing if the
10 registrar denies a registration or renewal certificate, and shall
11 provide the applicant an opportunity to respond to or cure any
12 defect in the written application or renewal for a period of ten
13 (10) days from the date of the written notification. ~~An~~ A renewal
14 applicant aggrieved by a decision of the registrar denying a
15 ~~registration or~~ renewal may appeal the decision as provided in the
16 Roofing Contractor Registration Act, the Construction Industries
17 Board Act, or the Administrative Procedures Act, or applicant may
18 reapply after a ninety-day waiting period, if otherwise eligible
19 under the provisions of the Roofing Contractor Registration Act.
20 The application and renewal fees shall not be refundable.

21 G. The registrar shall classify all persons who fail to renew
22 their registration or endorsement, if any, as expired; and may
23 classify a registration or endorsement as not in good standing,
24

1 suspended or revoked the registration of any roofing contractor who
2 fails to:

3 1. Maintain liability insurance coverage;

4 2. Maintain workers' compensation coverage satisfactory under
5 the Workers' Compensation Act, or provide an affidavit of exemption
6 or self-insurance as authorized pursuant to the Workers'
7 Compensation Act;

8 3. File, renew, or properly amend any fictitious name
9 certificate;

10 4. Maintain an active status of a corporation or registration
11 as a foreign corporation, a limited liability company or
12 registration as a foreign limited liability company, a limited
13 liability partnership registration or foreign limited liability
14 partnership registration, or a limited partnership certificate or
15 limited partnership or foreign limited partnership certificate of
16 authority, with the Office of the Secretary of State;

17 5. File or renew a trade name registration;

18 6. Maintain or renew a roofing contractor registration as
19 provided in the Roofing Contractor Registration Act;

20 7. Notify the registrar of a change in name, address, legal
21 business entity, qualifying party, legal service agent, or
22 adjudication by a court of competent jurisdiction for any act or
23 omission specified in subsection A of Section 1151.14 of this title
24 or a violation of the Roofing Contractor Registration Act;

1 8. Maintain a registration as required by law in another state
2 while registered in this state as a nonresident roofing contractor;
3 or

4 9. File and pay all taxes of the qualifying party and legal
5 entity when due in this state.

6 H. The registrar shall send a written notice to the qualifying
7 party when his or her registration ~~is not in good standing~~ status
8 has changed.

9 I. Any roofing contractor who has been notified by the
10 registrar that his or her registration is not in good standing shall
11 cease soliciting or entering new roofing services and projects as of
12 the date of such notification; however, the roofing contractor shall
13 be allowed to complete roofing projects where actual physical work
14 has begun prior to the date of issuance of the notice that his or
15 her registration is not in good standing. The roofing contractor
16 must disclose the change in standing to any homeowner or other
17 person who has an interest in any job covered under the Roofing
18 Contractor Registration Act. Upon notice of a change in standing,
19 the homeowner shall have the option to cancel the contract. The
20 roofing contractor will be owed the actual cost incurred for
21 materials and the market value of labor already incurred on the job.
22 The roofing contractor must obtain an updated authorization from the
23 homeowner and other parties of interest if there is an agreement to
24 continue the job as originally negotiated. If the roofing

1 contractor fails to correct the deficiency specified in the notice
2 by evidence satisfactory to the registrar within thirty (30) days of
3 the date of the notice, or if the roofing contractor solicits or
4 enters into new roofing services contracts or projects while the
5 roofing contractor's registration is not in good standing, expired
6 or while such registration is suspended or revoked, the roofing
7 contractor shall be in violation of the provisions of the Roofing
8 Contractor Registration Act.

9 J. ~~Any registration that remains not in good standing for a~~
10 ~~sixty-day period shall be suspended on the sixtieth day from the~~
11 ~~date of issuance of the notice to the roofing contractor that his or~~
12 ~~her registration is not in good standing. Any registration the~~
13 ~~remains not in good standing, and is suspended for such cause, shall~~
14 ~~be revoked on the ninetieth day from the date of issuance of the~~
15 ~~notice to the roofing contractor that his or her registration is not~~
16 ~~in good standing. The registrar shall notify the roofing contractor~~
17 ~~upon suspension or revocation of his or her registration for failure~~
18 ~~to comply in bringing such registration into good standing as~~
19 ~~required by law.~~ The roofing contractor may reinstate his or her
20 registration to good standing by paying the required fees provided
21 in Section 1151.12 of this title and complying with all other
22 requirements for issuance of a registration in good standing.

23 K. Any registrant, qualifying party, or roofing company owner
24 aggrieved by the decision of the registrar to suspend or revoke a

1 registration pursuant to this section may appeal such decision as
2 provided in this act or the Administrative Procedures Act.

3 SECTION 6. AMENDATORY 59 O.S. 2021, Section 1151.7, is
4 amended to read as follows:

5 Section 1151.7. The holder of a roofing contractor registration
6 certificate is the registrant and is entitled to engage in the
7 roofing business within this state pursuant to the provisions of the
8 Roofing Contractor Registration Act, and subject to the following
9 limitations:

10 1. A roofing contractor's registration certificate number and
11 any required endorsement shall be valid and in good standing at the
12 time of soliciting a project and during subsequent job performance;

13 2. Each active roofing contractor issued a roofing contractor
14 registration shall display ~~the~~ his or her roofing firm name,

15 endorsement information if required, and the roofing contractor
16 registration number bearing the initials "OK" preceding that

17 registration number issued by the registrar on all vehicles used to
18 transport materials and tools in the operation of the business.

19 Such names, endorsements and numbers shall be printed in letters and
20 numerals at least two (2) inches in height in a conspicuous location
21 on both sides of each vehicle in contrasting color to the background
22 color;

23 3. Each registered roofing contractor shall be properly
24 endorsed as required by the Roofing Contractor Registration Act and,

1 when issued a commercial or residential roofer endorsement, shall
2 display the roofing firm name and the information that the roofing
3 contractor has a commercial or residential roofer endorsement issued
4 by the registrar on all vehicles used to transport materials and
5 tools in the operation of the business. Such endorsement
6 information shall be in print size that is at least two (2) inches
7 in height in a conspicuous location on both sides of each vehicle in
8 contrasting color to the background color;

9 4. Each actively endorsed registrant who has contracted
10 directly with a prime contractor or owner shall post in a
11 conspicuous place on the job site the name, existence of any
12 endorsement, registration number, and telephone number for the
13 registration and endorsement under which any work is being
14 performed, and on all media containing the registrant's name,
15 including but not limited to magnetic signs on vehicles, business
16 cards, contracts, bids, letterhead, signs, and advertisements. The
17 prime contractor or registered and endorsed roofing contractor, if
18 no prime contractor, remains responsible under the Roofing
19 Contractor Registration Act for required registration and
20 endorsement compliance when subcontracting the roofing work as is
21 every subcontractor when subcontracting that roofing work.
22 Subcontracting to an unregistered roofing contractor is a violation
23 of this act. Subcontracting to an unendorsed or improperly endorsed
24 roofing contractor when an active endorsement is required is a

1 violation of the Roofing Contractor Registration Act. It is the
2 responsibility of the prime contractor, all contractors, and all
3 subcontractors to comply with this act and to provide proof on the
4 jobsite to the registrar of current registration and active
5 endorsement of the qualifying party providing the required direct
6 supervision. Failure to provide proof to the registrar on the
7 jobsite of the active current and properly endorsed qualifying party
8 directly supervising the job is a violation of this act for which
9 enforcement action may be taken on each person performing roofing
10 work on the jobsite and each subcontractor up to and including the
11 contractor contracting directly with the owner;

12 5. A roofing contractor's registration certificate number and
13 endorsement information shall be submitted when applying for any
14 permit issued by the state, or any of its political subdivisions,
15 for commercial or residential roofing services or projects, if a
16 permit is required by such authority, and shall be written upon each
17 permit issued. Provided, however, no permitting authority shall
18 require a roofing contractor registration certificate as a condition
19 to issuing a permit when registration is exempt pursuant to Section
20 1151.9 of this title;

21 6. A roofing contractor's registration certificate cannot be
22 shared or used by any other individual; provided, however, a
23 business firm, partnership, association, corporation, limited
24 liability company, or other group or combination thereof acting as a

1 unit may be granted a single roofing registration certificate number
2 for use by designated roofing contractors acting as agents for the
3 business entity when the application for registration contained
4 sufficient information on each member, partner, officer and agent
5 and the registrar issued a single certificate number to such persons
6 as a business unit;

7 7. Upon any change to the name, address, business entity,
8 qualifying party, change in firm ownership of fifty percent (50%) or
9 more of the stock or beneficial interest in the company, or legal
10 service agent of a roofing contractor or upon adjudication by a
11 court of competent jurisdiction for a violation of the Roofing
12 Contractor Registration Act or an act or omission specified in
13 subsection A of Section 1151.14 of this title, the registrar shall
14 be notified in writing within ten (10) days. Any proposed or final
15 order or notice of hearing to the attorney of record or the last-
16 known address of record shall be considered delivered when sent
17 registered, certified or post office receipt secured and deposited
18 in the United States mail ~~and/or sent registered or certified or~~
19 ~~post office receipt secured~~. Any other communication to the
20 attorney of record or the last-known address of record of a
21 registrant shall be considered delivered when deposited in the
22 United States mail, regular mail;

1 8. A roofing contractor shall comply with state laws and local
2 ordinances relating to standards and permits for roofing services
3 and projects;

4 9. A roofing contractor must pay taxes due in this state;

5 10. Each registrant shall notify the registrar within ten (10)
6 days after he or she receives notice that any felony conviction has
7 been rendered against him or her or the registrant or qualifying
8 party has ~~pled~~ a plea of guilty or nolo contendere, or a finding of
9 guilt to a felony. The notification shall be in writing, by
10 certified mail, and shall include a copy of the conviction, plea,
11 finding of guilt, or judgment and sentence;

12 11. Each registrant shall notify the registrar immediately upon
13 receipt of an order imposing disciplinary action upon its
14 registration issued by any other professional regulatory board, in
15 this or any other jurisdiction. Disciplinary action taken against
16 any other professional registration or license held by the
17 registrant in this jurisdiction or any other jurisdiction is grounds
18 for disciplinary action against the registration issued pursuant to
19 the Roofing Contractor Registration Act; and

20 12. Each registrant shall utilize a valid written contract when
21 engaging in the business of roofing contractor work except when an
22 actively endorsed roofing contractor subcontracts with a labor-only
23 crew that is being directly supervised by the qualifying party and
24 is in compliance with this act including posting of the qualifying

1 party's information at the jobsite. The contract shall contain the
2 requirements described in Section 1151.21 of this title. Committing
3 fraud when executing or materially altering a roofing contract,
4 mortgage, promissory note or other document incidental to performing
5 roofing contractor work, is a violation of the Roofing Contractor
6 Registration Act.

7 13. All persons shall comply with the provisions of the Roofing
8 Contractor Registration Act and violations are to be enforced as
9 provided in the Roofing Contractor Registration Act.

10 14. Registered and endorsed roofing contractors shall not
11 subcontract with unregistered or unendorsed, if endorsement is
12 required, roofing contractors or any contractors who are not in good
13 standing, and only utilize labor-only crews who are currently
14 registered in good standing.

15 15. Labor-only crews shall provide proof of their registration
16 in good standing and the registration number with proper endorsement
17 for the roofing contractor qualifying party with whom they are
18 directly working and who is providing direct supervision when
19 requested.

20 SECTION 7. AMENDATORY 59 O.S. 2021, Section 1151.8, is
21 amended to read as follows:

22 Section 1151.8. A. At the time of making application for a
23 roofing contractor registration certificate pursuant to the Roofing
24 Contractor Registration Act, the applicant shall pay to the

1 registrar a fee of Seventy-five Dollars (\$75.00) for the annual
2 registration certificate.

3 B. All monies collected by the registrar for roofing contractor
4 registration applications, renewals and other fee assessments shall
5 be deposited by the registrar and credited to the Roofing Contractor
6 Registration Revolving Fund and such funds shall be used by the
7 registrar to implement and administer the provisions of the Roofing
8 Contractor Registration Act.

9 C. ~~The fee to be submitted with an application for a roofing~~
10 ~~contractor registration may be prorated as set by the provisions of~~
11 ~~the Roofing Contractor Registration Act or rules. Unless prorated~~
12 ~~at the time of initial registration,~~ fees for initial registration
13 shall be paid in the amount stated in subsection A of this section
14 and such registration certificates shall expire each year on the
15 last day of the birth month of the qualifying party. ~~Renewals will~~
16 ~~be prorated as provided in Section 1151.3 of this title.~~

17 D. A renewal fee for a roofing contractor registration shall be
18 Seventy-five Dollars (\$75.00) for the annual renewal registration
19 certificate.

20 SECTION 8. AMENDATORY 59 O.S. 2021, Section 1151.9, is
21 amended to read as follows:

22 Section 1151.9. A. Any administrative or governing body with
23 authority to enter into public contracts shall require individual
24 roofing contractor registration with appropriate endorsement for

1 purposes of such persons submitting or entering into any bid or
2 contract involving roofing contractor work.

3 B. The Roofing Contractor Registration Act does not apply to:

4 1. An actual owner of residential or farm property who
5 physically performs, or has family member, employee or employees who
6 perform with or without remuneration, roofing services including,
7 construction, installation, renovation, repair, maintenance,
8 alteration, waterproofing, or removal of materials or structures on
9 property owned by such person;

10 2. Any authorized employee, representative or representatives
11 of the United States Government, the State of Oklahoma, or any
12 county, municipality, or other political subdivision of this state
13 performing maintenance on their own facilities which does not
14 violate manufacturer specifications nor compromise health or safety
15 standards and practices;

16 3. Any person who furnishes any fabricated or finished product,
17 material, or article of merchandise which is not incorporated into
18 or attached to real property by such person so as to become affixed
19 thereto;

20 4. Any person including churches or other charitable entities
21 that provide roof repairs or replacements at no charge using
22 volunteer labor;
23
24

1 5. Any employee of a registrant who does not hold himself or
2 herself out for hire, advertise, or engage in contracting, except as
3 an employee of a registrant;

4 6. Licensed engineers, licensed architects, licensed HVAC and
5 any other person licensed by the jurisdiction, operating under the
6 purview and within the scope of their respective license;

7 7. A person who only furnishes roofing materials, roofing
8 supplies or equipment and does not, nor do the person's employees,
9 install or fabricate them into or consume them in the performance of
10 the work of the roofing contractor;

11 8. Prime contractors, general contractors, property managers
12 and project managers who bid on construction trade work in areas
13 additional to roofing contractor work, and subcontract the roofing
14 contractor work as long as they subcontract the roofing work to a
15 currently registered and properly endorsed roofing contractor who is
16 in good standing; if the bid is solely for roofing contractor work,
17 then a registration ~~is required~~ and endorsement are required as set
18 forth in this act;

19 9. Owners of commercial properties including residential rental
20 properties consisting of four dwelling units or less, when acting as
21 their own roofing contractor and providing all material supervision
22 themselves, lessees of residential properties with the consent of
23 the owner, who, whether themselves or with their own employees,
24 perform roofing construction in or upon the properties, all

1 installing roofing materials according to the International Building
2 Code, as adopted by the Oklahoma Uniform Building Code Commission,
3 or the manufacturer's installation instructions;

4 10. Owners of property when acting as their own roofing
5 contractor, providing all material supervision themselves, and
6 installing roofing materials according to the International
7 Residential Code, as adopted by the Oklahoma Uniform Building Code
8 Commission, or the manufacturer's installation instructions when
9 building or improving a single-family dwelling residence on such
10 property for the occupancy of such owners and not intended for sale
11 or rent. In any action brought under the Roofing Contractor
12 Registration Act, proof of the sale or offering for sale of such
13 structure or the renting or offering to rent of such structure by
14 the owners of the property within one (1) year after substantial
15 completion of the structure when the structure can be occupied and
16 used as intended but punch list items may remain, is presumptive
17 evidence that the construction was undertaken with the intent of
18 sale or rent; or

19 11. Metal building erectors who install prefabricated- or pre-
20 engineered-metal-building packages, known as PEMBs, as defined by
21 the Construction Science Institute and Construction Specifications
22 Institute in Division 13, Special Construction: Metal Building
23 Systems.

1 C. Labor-only crews providing labor only and working directly
2 for a registered roofing contractor that possesses a proper current
3 roofer endorsement in good standing and is under the direct
4 supervision of that endorsed roofer qualifying party performing the
5 installation of asphalt shingles, tile shingles, synthetic shakes or
6 wood shakes or other comparable materials to a sloped roof and to
7 complete roofing work and does not provide any materials must be
8 registered but are not required to have ~~a commercial~~ an endorsement.

9 SECTION 9. AMENDATORY 59 O.S. 2021, Section 1151.10, as
10 amended by Section 3, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025,
11 Section 1151.10), is amended to read as follows:

12 Section 1151.10. A. Within twenty-five (25) calendar days from
13 the date of application, the registrar shall either issue or deny
14 the roofing contractor registration. No registration shall be
15 issued to a qualifying party until the registrar receives all
16 documentation and fees necessary to obtain a registration
17 certificate in good standing. The registration certificate issued
18 on an original application entitles the person to act as a roofing
19 contractor within this state, subject to the limitations of the
20 Roofing Contractor Registration Act. ~~Until January 1, 2015, all~~
21 ~~registrations shall expire on June 30 of each year and may be~~
22 ~~renewed from year to year.~~ Beginning no later than January 1, 2015,
23 all registrations issued shall be renewed based on staggered
24 expiration dates of the last day of the birth month of the

1 qualifying party so that all registrations and endorsements shall
2 expire on the last day in the birth month of the qualifying party.
3 The Construction Industries Board is authorized to prorate
4 registration and renewal fees, as described by rule, ~~so that~~
5 ~~beginning January 1, 2015, or thirty (30) days after rules have been~~
6 ~~approved, fees for renewals previously due by June 30, 2015, are~~
7 ~~prorated and converted to be due the last day of the birth month of~~
8 ~~the qualifying party by shortening or lengthening the next renewal~~
9 ~~date by up to six (6) months. Beginning November 1, 2014, new~~
10 ~~initial registrations and endorsements will be issued for up to~~
11 ~~eighteen (18) months and due for renewal the last day of the birth~~
12 ~~month of the qualifying party. After initial proration or~~
13 conversion to birth month, no subsequent registration or endorsement
14 shall be issued for longer than one (1) year and all endorsements
15 shall expire on the last day in the birth month of the qualifying
16 party. The Construction Industries Board shall implement rules for
17 the scheduling of expiration and renewal of registrations and
18 endorsements, including the prorating of fees and the identification
19 and information of the qualifying party. The commercial or
20 residential roofer endorsement shall expire on the expiration date
21 of the supporting registration.

22 B. ~~An applicant or qualifying party whose registration or~~
23 ~~endorsement is refused or denied by the registrar may obtain a~~
24 ~~hearing before the Committee of Roofing Examiners with written~~

~~notice to the registrar of the grounds for appeal and identification of evidence to be presented in support of the application requirements and any other information showing the applicant's ability and willingness to comply with the requirements of the act, and to protect the public health, safety and welfare. Such appeals to the Committee of Roofing Examiners shall be made by the qualifying party in writing to the registrar within fourteen (14) days from the date of the written notification of denial or refusal to register or endorse.~~

~~C.~~ The Construction Industries Board shall issue a commercial or residential roofer endorsement to any person who:

1. Has been ~~certified~~ approved by the Committee of Roofing Examiners or the registrar as having successfully passed the appropriate examination; and

2. Has paid the application and endorsement fee and has otherwise complied with all of the provisions of the commercial or residential roofer endorsement of the Roofing Contractor Registration Act. The endorsement fee is hereby established as up to Two Hundred Dollars (\$200.00). Renewal of a commercial or residential roofer endorsement shall be One Hundred Dollars (\$100.00).

Endorsements renewed more than thirty (30) days following the date of expiration may only be renewed upon application and payment

1 of the required fees and payment of late renewal fee in the amount
2 of One Hundred Dollars (\$100.00).

3 No endorsement shall be renewed unless the licensee has
4 completed the required hours of continuing education recommended by
5 the Committee and set forth by rule.

6 No late fee shall be charged to renew a registration or
7 endorsement which expired while the applicant was in active military
8 service, if application for renewal is made within one (1) year of
9 discharge from active duty status.

10 SECTION 10. AMENDATORY 59 O.S. 2021, Section 1151.11, is
11 amended to read as follows:

12 Section 1151.11. Not later than ten (10) days after the date of
13 a change in a roofing contractor's name, address, or legal service
14 agent, or upon a registered roofing contractor ceasing business as a
15 roofing contractor, the person shall notify the registrar of the
16 change on a form provided by the registrar. A name, address, or
17 legal service agent change shall be accompanied by a fee not
18 exceeding Twenty-five Dollars (\$25.00) to be set by the registrar.
19 A person may not change his or her name under an active registration
20 certificate if the change is associated with a change in the legal
21 status of the business entity other than a change in marital status.
22 Doing business under a new business name or a change in legal status
23 of a business requires issuance of a new registration certificate.
24 ~~When a registered roofing contractor ceases to be active as a~~

1 ~~roofing contractor, the registrar shall suspend the registration~~
2 ~~certificate of such contractor.~~

3 SECTION 11. AMENDATORY 59 O.S. 2021, Section 1151.12, is
4 amended to read as follows:

5 Section 1151.12. A. Any roofing contractor registration
6 certificate issued under the Roofing Contractor Registration Act may
7 be renewed for each successive year by obtaining from the registrar
8 a certificate of renewal. To obtain a certificate of renewal, the
9 qualifying party shall file with the registrar a renewal application
10 by the last day of the birth month of the qualifying party each
11 successive year, provide any qualifying party information required
12 under the Roofing Contractor Registration Act, Section 1151.5 of
13 this title, not previously provided by the applicant, if any, and
14 pay the renewal fee. The application for renewal shall require
15 statements under oath that the qualifying party and legal entity
16 have properly submitted income and employment taxes due in this
17 state; whether or not the qualifying party has been adjudicated by a
18 court of competent jurisdiction for any violation of the Roofing
19 Contractor Registration Act or any act or omission specified in
20 ~~subsection A of~~ Section 1151.14 of this title. The registrar may
21 forward a copy of any information in an application for renewal to
22 the Oklahoma Tax Commission and any other state agency.

23 B. The qualifying party shall include with the renewal
24 application a copy of the certificate of liability insurance, unless

1 the registrar has a current valid certificate of insurance on file,
2 proof of workers' compensation coverage, unless exempt under the
3 Workers' Compensation Act, and, if applicable, a copy of the current
4 registration certificate required by law for roofing contractors.
5 The renewal application shall be notarized.

6 C. The registrar shall refuse to renew a roofing contractor's
7 registration certificate for any reason stated in ~~subsection B of~~
8 Section 1151.5 of this title or for failing to provide any
9 qualifying party information required under the Roofing Contractor
10 Registration Act not previously provided by the applicant. The
11 registrar shall notify the applicant in writing if the registrar
12 denies the renewal as provided in ~~subsection C of~~ Section 1151.5 of
13 this title.

14 D. If any roofing contractor fails to ~~file a renewal~~
15 ~~application~~ renew by the deadline of the last day of the birth month
16 of the qualifying party, that contractor's registration shall be not
17 in good standing expired. ~~A~~ An expired roofing contractor has a
18 thirty-day grace period on fees after the last day of the birth
19 month of the qualifying party to renew the registration certificate
20 without a late fee. The late fee shall be One Hundred Dollars
21 (\$100.00). ~~A roofing contractor registration certificate not~~
22 ~~renewed within sixty (60) days of the last day of the birth month of~~
23 ~~the qualifying party shall be suspended for failure to renew, and if~~
24 ~~a roofing contractor's registration certificate still has not been~~

1 ~~renewed within six (6) months of expiration, it shall be revoked for~~
2 ~~failure to renew.~~

3 E. 1. A roofing contractor desiring to renew a registration
4 certificate that has been suspended for any cause provided in this
5 act shall be assessed a fee equal to twice the amount of the fee
6 established by ~~subsection D~~ of Section 1151.8 of this title.

7 2. The registrar shall assess a reinstatement fee not exceeding
8 Three Hundred Dollars (\$300.00) to be set by the registrar plus the
9 fee established by Section 1151.8 of this title for any registration
10 that has been revoked for any cause provided in the Roofing
11 Contractor Registration Act.

12 3. A roofing contractor submitting an application for
13 registration after suspension or revocation of that contractor's
14 registration certificate must be otherwise eligible for registration
15 under the Roofing Contractor Registration Act.

16 F. The registrar shall include a registration status notation
17 in a roofing contractor's record if the status of registration
18 changes from an active and valid registration to not in good
19 standing, ~~expired~~, denied, suspended or revoked.

20 SECTION 12. AMENDATORY 59 O.S. 2021, Section 1151.14, is
21 amended to read as follows:

22 Section 1151.14. A. Any person may file a written duly
23 verified complaint with the registrar alleging that a person has
24 committed any of the following acts or omissions:

- 1 1. Abandonment of a roofing contract without legal excuse after
2 a deposit of money or other consideration has been paid;
- 3 2. Diversion of funds or property entrusted to a roofing
4 contractor;
- 5 3. Engaging in any fraudulent or deceptive acts or practices or
6 misrepresentation of products, services or qualifications as a
7 roofing contractor;
- 8 4. Making a false or misleading statement in an application for
9 roofing contractor registration, endorsement, or renewal application
10 or in soliciting a contract for roofing services;
- 11 5. Adjudication against the roofing contractor by a court of
12 competent jurisdiction for a violation of the provisions of the
13 Roofing Contractor Registration Act, or a license or registration or
14 endorsement suspended, revoked or other discipline imposed by any
15 other professional regulatory board in this or any other
16 jurisdiction;
- 17 6. Engaging in or offering to engage in work without a valid
18 registration and commercial or residential roofer endorsement as
19 required for roofing contractors pursuant to the Roofing Contractor
20 Registration Act or performing roofing services during any period
21 when the roofing contractor's registration is denied, not in good
22 standing, expired, suspended or revoked;

1 7. Engaging in or offering to engage in roofing services
2 without obtaining a proper permit as may be required by any state or
3 local authority;

4 8. Failure to comply with any tax laws authorized by the state
5 or any of its political subdivisions;

6 9. Damaging or injuring persons or property while performing
7 roofing services under a valid roofing contractor registration for
8 which the roofing contractor's liability insurance or workers
9 compensation coverage was inadequate;

10 10. Failure to display the roofing firm name, existence of any
11 commercial or residential roofer endorsement, if any, and the
12 roofing contractor registration number on all vehicles used to
13 transport materials and tools in the operation of the business in
14 letters and numerals at least two (2) inches in height in a
15 conspicuous location on both sides of each vehicle in contrasting
16 color to the background color;

17 11. Failure to post in a conspicuous place on each job site the
18 name, existence of any commercial or residential roofer endorsement,
19 registration number, and telephone number for the registration under
20 which any work is being performed;

21 12. Engaging in or offering to engage in roofing contractor
22 work using a roofing registration number of another registrant,
23 ~~whether the registration is or is not in good standing;~~
24

1 13. Advertising, either directly or through another, for
2 roofing contractor work without a valid, continuing registration and
3 endorsement, or without displaying registration number and
4 endorsement information on advertisement, including but not limited
5 to contracts and signage on vehicles;

6 14. Soliciting roofing contractor work through contracts
7 obtained by salespersons not under the direct supervision and
8 employment of a registered and endorsed roofing contractor when such
9 contract is then sold for remuneration or something of value and
10 consists of a pattern of conduct that can be shown to be a business
11 practice in a secondary market of sales of contracts for profit;

12 15. Gross defects in workmanship in a roofing contractor
13 project that risks serious harm or injury to a person, or unjustly
14 causes monetary damages in excess of Five Thousand Dollars
15 (\$5,000.00); or

16 16. Failure to comply with a specified provision of the Roofing
17 Contractor Registration Act.

18 B. The complaint shall be on a form approved by the registrar
19 and shall set forth the alleged act or omission stated in subsection
20 A of this section, and a statement of sufficient facts upon which a
21 reasonable person could conclude that the act or omission specified
22 in subsection A of this section has been committed. All complaints
23 filed with the registrar shall be open to public inspection.
24 Nothing in this section shall be construed to require the

1 complainant to first file a complaint with the registrar before
2 seeking relief or remedies allowed by law.

3 C. A complaint received by the registrar as provided in this
4 section may be ~~retained by the Board for~~ subject to investigation,
5 citation, and hearing before the Roofing Hearing Board ~~or, in the~~
6 ~~Board's discretion, the complaint may be referred to the district~~
7 ~~attorney for appropriate disposition as determined by the district~~
8 ~~attorney, in his or her discretion.~~

9 SECTION 13. AMENDATORY 59 O.S. 2021, Section 1151.15, as
10 amended by Section 1, Chapter 200, O.S.L. 2025 (59 O.S. Supp. 2025,
11 Section 1151.15), is amended to read as follows:

12 Section 1151.15. A. The ~~Board~~ registrar is authorized to
13 investigate any written complaint received pursuant to the Roofing
14 Contractor Registration Act, including any person to the extent
15 necessary to determine if the person is engaged in violations of the
16 provisions of the Roofing Contractor Registration Act, including
17 unlawful activity of the practice of contracting for roofing work
18 without a valid registration, ~~whether the matter is prosecuted~~
19 ~~administratively through the Roofing Hearing Board or referred for~~
20 ~~criminal prosecution~~ and endorsement. The Board registrar may refer
21 the matter for prosecution whether or not the person ceases the
22 unlawful practice of contracting for roofing work without a valid
23 registration and endorsement.

1 B. Service of the notice of violation or citation may be in
2 person or by certified mail at the last-known business address or
3 residence address of the person cited.

4 C. A notice of violation and citation may contain a cease and
5 desist order for residential roofing contractor work if the
6 homeowner has been provided the required disclosure and has
7 exercised the homeowner's option to cancel the contract as provided
8 in subsection I of Section 1151.5 of this title, or at any time
9 during commercial roofing contractor work.

10 D. The registrar shall read each complaint received and shall
11 record the date that the verified complaint was received and process
12 the complaint as provided by law. The registrar shall notify the
13 roofing contractor against whom the complaint is made, in writing,
14 within five (5) days of the receipt of the written complaint. The
15 roofing contractor shall have ten (10) days to respond, in writing,
16 to the registrar. If a response to the complaint is received by the
17 registrar, whether admitting or denying the basis of the complaint,
18 a copy of both the complaint and the response shall be sent to the
19 district attorney along with the results of any investigation by the
20 ~~Board registrar~~, if the ~~Board does not retain the matter and~~
21 registrar refers the complaint to the district attorney. If no
22 response is received, the complaint may still be referred to the
23 district attorney, along with the results of any investigation by
24 the ~~Board~~ registrar. The ~~Board~~ registrar or a Committee of Roofing

1 Examiners member is authorized to assist in any investigation of a
2 roofing complaint referred to the district attorney, if requested by
3 the district attorney.

4 E. Following referral of a complaint to the district attorney,
5 if the roofing contractor is adjudicated by the court for an act or
6 omission specified in subsection A of Section 1151.14 of this title,
7 or upon a conviction for any violation of the provisions of the
8 Roofing Contractor Registration Act, the registrar, when ordered by
9 the court, shall suspend, revoke or deny the roofing contractor's
10 registration and any endorsement for the period of time specified by
11 the court, and if the court orders the registration suspended,
12 revoked or denied, and yet fails to set the term of such suspension,
13 revocation or denial, the period shall be six (6) months.

14 F. The registrar shall not renew, reinstate, or issue a new
15 roofing contractor registration or endorsement to any person subject
16 to any term of denial, suspension or revocation until such term has
17 been completed, and thereafter, the person makes application and
18 pays required fees pursuant to Sections 1151.8 and 1151.12 of this
19 title.

20 G. It shall be unlawful for a person to obtain or attempt to
21 obtain a roofing contractor registration certificate under any other
22 name during any period when the roofing contractor's registration is
23 not in good standing, expired, suspended or revoked. Upon
24 conviction of a violation of this subsection, the person shall be

1 guilty of a misdemeanor as provided in Section 1151.3 of this title.
2 A business firm, partnership, association, corporation, limited
3 liability company, or other group or combination thereof acting as a
4 unit whose registration certificate is not in good standing,
5 expired, suspended or revoked includes all of the members, partners,
6 officers, and agents acting under that roofing contractor
7 registration certificate when such persons are specified on and did
8 sign the application or renewal form.

9 SECTION 14. AMENDATORY 59 O.S. 2021, Section 1151.17, is
10 amended to read as follows:

11 Section 1151.17. A. When applying for any permit required by
12 the state or any of its political subdivisions for roofing services
13 or jobs, a roofing contractor shall supply the permit-issuing
14 official that roofing contractor's registration certificate number
15 issued pursuant to the Roofing Contractor Registration Act and
16 endorsement information. That official shall enter a roofing
17 contractor's registration number and endorsement information on the
18 permit. The registrar may investigate any roofing project for
19 purposes of verifying roofing contractor registration, endorsement,
20 or permit verification.

21 B. A person performing as a roofing contractor on his or her
22 own property, although exempt from the registration requirements of
23 the Roofing Contractor Registration Act, shall, when applying for a
24 permit required for the project, supply the permit-issuing official

1 any roofing contractor registration number and endorsement
2 information, as soon as available, of each roofing subcontractor
3 engaged in roofing services and doing work covered by the permit, if
4 any. That official shall enter each roofing contractor registration
5 number and endorsement information so supplied before inspection of
6 the job.

7 C. A roofing contractor shall display his or her roofing
8 contractor registration number issued and endorsement information
9 pursuant to the Roofing Contractor Registration Act on every
10 business sign, card, correspondence, and contract used to solicit
11 and conduct roofing services in this state and shall display the
12 roofing firm name, existence of any commercial or residential roofer
13 endorsement, and the roofing contractor registration number bearing
14 the initials "OK" preceding that registration number issued by the
15 registrar on all vehicles used to transport materials in the
16 operation of the business. Such names, endorsements, and numbers
17 shall be printed in letters and numerals at least two (2) inches in
18 height in a conspicuous location on both sides of each vehicle in
19 contrasting color to the background color.

20 D. Each actively endorsed registrant who has contracted
21 directly with a prime contractor or owner shall post in a
22 conspicuous place on each job site the name, existence of any
23 commercial or residential roofer endorsement, registration number,
24 and telephone number for the registration under which any work is

1 being performed, and on all media containing the registrant's name,
2 including but not limited to magnetic signs on vehicles, business
3 cards, contracts, bids, letterhead, signs, and advertisements. The
4 prime contractor or registered and endorsed roofing contractor, if
5 no prime contractor, remains responsible under this act for required
6 registration and endorsement compliance when subcontracting the
7 roofing work as is every subcontractor when subcontracting roofing
8 work. Subcontracting to an unregistered roofing contractor is a
9 violation of this act. Subcontracting to an unendorsed or
10 improperly endorsed roofing contractor when an active endorsement is
11 required is a violation of this act. It is the responsibility of
12 the prime contractor, all contractors, and all subcontractors to
13 comply with this act and to provide proof on the jobsite to the
14 registrar of the current registration and active endorsement of the
15 qualifying party providing the required direct supervision. Failure
16 to provide proof to the registrar on the jobsite of the active
17 current and properly endorsed qualifying party directly supervising
18 the job is a violation of the Roofing Contractor Registration Act,
19 for which enforcement action may be taken on each person performing
20 roofing work on the jobsite and each subcontractor up to and
21 including the contractor contracting directly with the owner.

22 SECTION 15. AMENDATORY 59 O.S. 2021, Section 1151.18, as
23 amended by Section 2, Chapter 200, O.S.L. 2025 (59 O.S. Supp. 2025,
24 Section 1151.18), is amended to read as follows:

1 Section 1151.18. Upon request, the registrar shall verify a
2 roofing contractor registration number and endorsement information
3 to city, county and state enforcement officials and to the public.
4 The registrar shall establish through the Internet or other
5 technology a verification system or direct access system for
6 confirming roofing contractor registration certificates ~~and~~, status
7 of registration, and endorsement information maintained by the
8 Construction Industries Board. Disclosure of any information
9 through use of the roofing contractor registration system or
10 information maintained by the registrar shall not be deemed to be an
11 endorsement of any roofing contractor or determination of any facts,
12 qualifications, information or reputation of any roofing contractor
13 by the registrar, the state, the Construction Industries Board, or
14 any of their respective agents, officers, employees or assigns.

15 SECTION 16. AMENDATORY 59 O.S. 2021, Section 1151.22, is
16 amended to read as follows:

17 Section 1151.22. A. Any contract entered into under the
18 Roofing Contractor Registration Act shall include a statement that
19 all individuals performing work under the contract are covered by
20 workers' compensation insurance.

21 B. If an affidavit of exemption for workers' compensation
22 insurance is used by a legitimately exempt person, it shall be
23 attached to the contract and it shall be used only for residential
24 construction projects. All commercial projects shall require all

1 individuals performing work on such project to be covered by
2 workers' compensation insurance as employees of the person
3 registered under the Roofing Contractor Registration Act. However,
4 any day laborer under the required direct supervision of a
5 qualifying party who can show proof of being covered by workers'
6 compensation insurance under the temporary labor agency for whom he
7 or she is hired-out may provide an affidavit from the temporary
8 labor agency to meet the requirement of this section for authority
9 to use an affidavit of exemption. No roofing contractor required to
10 be registered under the Roofing Contractor Registration Act shall
11 hire any out-of-state company or person or use any person or
12 independent contractor that is not registered under the Roofing
13 Contractor Registration Act with the required workers' compensation
14 insurance or who is not deemed his or her employee for purposes of
15 workers' compensation insurance.

16 C. In no event shall a homeowner be held liable in the workers'
17 compensation administrative system for injury or death to any person
18 who performs work under a contract with a person required by law to
19 be registered under the Roofing Contractor Registration Act and have
20 workers' compensation insurance on all persons performing work on
21 the roofing project.

22 SECTION 17. AMENDATORY 59 O.S. 2021, Section 1151.25, is
23 amended to read as follows:
24

1 Section 1151.25. A. Except as otherwise provided in the
2 Roofing Contractor Registration Act, on and after July 1, 2015,
3 every roofing contractor offering to engage in or engaging in
4 performing commercial roofing contractor work in this state shall be
5 required to take and successfully pass a commercial roofing
6 examination approved under the provisions of ~~this act~~ the Roofing
7 Contractor Registration Act, and be in compliance with all other
8 provisions of the act and rules thereof before acting or being
9 endorsed as a commercial roofing contractor.

10 B. Examinations for a commercial roofer endorsement shall be
11 uniform and practical in nature and sufficiently strict to test the
12 qualifications and fitness of the applicants for endorsement.
13 Examinations shall be in whole or in part in writing. Examinations
14 shall be offered at least monthly; dates, times and locations are to
15 be determined by the registrar or third-party vendor with approval
16 of the registrar.

17 C. Any applicant initially failing to pass the examination
18 shall not be permitted to take another examination for a period of
19 thirty (30) days. Any applicant subsequently failing to pass the
20 examination shall not be permitted to take another examination for a
21 period of ninety (90) days. However, in a declared state of
22 emergency, the examination shall be available as often as possible
23 as determined by the registrar.

1 D. No commercial roofer endorsement shall be renewed unless the
2 qualifying party has completed the required hours of continuing
3 education, as determined and approved by the Committee of Roofing
4 Examiners and the Construction Industries Board. Effective January
5 1, 2027, four (4) hours of continuing education is required
6 annually. The continuing education course, provider, and instructor
7 shall be approved by the Committee of Roofing Examiners, in advance
8 unless otherwise allowed by the Roofing Registration Industry
9 Regulations. The continuing education material shall cover the
10 codes as adopted by the OUBCC or the Oklahoma laws for the roofing
11 industry regulations in combination with topics including but not
12 limited to:

- 13 1. Manufacturers' installation of materials or equipment;
- 14 2. Roofing safety;
- 15 3. Fall protection and other trade subject matters designed to
16 update knowledge and improve commercial roofing contracting
17 knowledge; and
- 18 4. Skills appropriate for topics of continuing education and
19 approved by the Committee.

20 E. Inactive endorsees in good standing, having met registration
21 and commercial endorsement exam requirements, and maintaining
22 continuing education and renewal fee requirements may have a current
23 endorsement in an inactive status when endorsees do not meet the
24 qualifications for active endorsement for the roofing firm and are

1 not the qualifying party for the firm. The inactive endorsee may
2 not act as the designated qualifying party for a roofing firm until
3 first becoming an active endorsee by submitting an application,
4 meeting all qualifications, and receiving an active endorsement.

5 SECTION 18. AMENDATORY Section 4, Chapter 368, O.S.L.
6 2025 (59 O.S. Supp. 2025, Section 1151.25a), is amended to read as
7 follows:

8 Section 1151.25a. A. Except as otherwise provided in the
9 Roofing Contractor Registration Act, ~~on and after the effective date~~
10 ~~of this act~~ beginning January 1, 2027, every roofing contractor,
11 except labor-only crews as defined in this act for those defined in
12 subsection G of this section, offering to engage in or engaging in
13 performing residential roofing contractor work in this state shall
14 be required to receive a residential ~~roofing~~ roofer endorsement. To
15 receive a residential ~~roofing~~ roofer endorsement, the roofing
16 contractor shall be required to take and successfully pass a
17 residential roofing examination approved under the provisions of
18 this act with a minimum score of seventy percent (70%), and be in
19 compliance with all other provisions of this act and rules before
20 acting or being endorsed as a residential roofing contractor. For
21 applicants who have been registered and in good standing with the
22 Construction Industries Board ~~on the effective date of this act~~ on
23 January 1, 2027, there shall be a twelve-month grandfathering-in
24 period from ~~the effective date of this act~~ January 1, 2027, to

1 January 1, 2028, to either pass the exam or complete an additional
2 ten (10) hours of continuing education credits approved in advance
3 by the Committee of Roofing Examiners to be granted a residential
4 roofer endorsement. Any applicant who has been registered, is in
5 good standing with the Board, and possesses a current commercial
6 roofer endorsement ~~on the effective date of this act~~ on January 1,
7 2027, shall be exempt from the residential roofing examination and
8 additional ten (10) hours of continuing education credits required
9 to receive a residential ~~roofing~~ roofer endorsement within the
10 twelve-month grandfathering-in period.

11 B. Examinations for a residential roofer endorsement shall be
12 uniform and practical in nature and sufficiently strict to test the
13 qualifications and fitness of the applicants for endorsement.
14 Examinations shall be in whole or in part in writing. Examinations
15 shall be offered at least monthly; dates, times, and locations shall
16 be determined by the registrar or third-party vendor with approval
17 of the registrar.

18 C. Any applicant initially failing to pass the examination
19 shall not be permitted to take another examination for a period of
20 thirty (30) days. Any applicant subsequently failing to pass the
21 examination shall not be permitted to take another examination for a
22 period of ninety (90) days. However, in a declared state of
23 emergency, the examination shall be available as often as possible
24 as determined by the registrar.

1 D. No residential roofer endorsement shall be renewed unless
2 the qualifying party has completed the required hours of continuing
3 education ~~pursuant to subsection A of this section~~, as determined
4 and approved by the Committee of Roofing Examiners and the
5 Construction Industries Board. Effective January 1, 2027, four (4)
6 hours of continuing education is required annually. The continuing
7 education course, provider, and instructor shall be approved by the
8 Committee of Roofing Examiners, in advance unless otherwise allowed
9 by the Roofing Registration Industry Regulations. The continuing
10 education material shall cover the codes as adopted by the OUBCC or
11 the Oklahoma laws for the roofing industry regulations in
12 combination with topics, including but not limited to:

- 13 1. Manufacturers' installation of materials or equipment;
- 14 2. Roofing safety;
- 15 3. Fall protection, and other trade subject matters designed to
16 update knowledge and improve residential roofing contracting
17 knowledge; and
- 18 4. Skills appropriate for topics of continuing education and
19 approved by the Committee.

20 E. For all new applicants not registered and in good standing
21 with the Construction Industries Board prior to ~~the effective date~~
22 ~~of this act~~ July 1, 2026, the Construction Industries Board shall
23 issue a residential roofer endorsement to qualifying applicants no
24 sooner than thirty (30) days from the date of successful completion

1 of the exam. New applicants shall not be allowed to sell, offer,
2 bid, inspect, or perform any residential roofing contractor work in
3 this state until a residential roofer endorsement is issued.

4 F. For all applicants registered and in good standing with the
5 Construction Industries Board prior to ~~the effective date of this~~
6 ~~act~~ July 1, 2026:

7 1. The residential roofer endorsement shall be issued
8 immediately upon compliance with the provisions of this section; and

9 2. Applicants shall be allowed to continue residential roofing
10 contractor work at all times during the residential roofer
11 endorsement application process, until January 1, 2027, when all
12 applicants must have a valid residential roofer endorsement to
13 perform residential roofing work unless otherwise exempted under
14 this act.

15 G. ~~The residential roofing endorsement shall not apply to~~
16 ~~roofing labor contractors who:~~

- 17 ~~1. Only provide roofing construction labor services;~~
18 ~~2. Are working directly for a registered roofing contractor~~
19 ~~that possesses a residential roofing endorsement; and~~
20 ~~3. Are not providing any materials~~

21 Inactive endorsees in good standing, having met registration and
22 residential endorsement exam requirements, and maintaining
23 continuing education and renewal fee requirements may have a current
24 endorsement in an inactive status when endorsees do not meet the

1 qualifications for active endorsement for the roofing firm and are
2 not the qualifying party for the firm. The inactive endorsee may
3 not act as the designated qualifying party for a roofing firm until
4 first becoming an active endorsee by submitting an application,
5 meeting all qualifications, and receiving an active endorsement.

6 SECTION 19. AMENDATORY 59 O.S. 2021, Section 1151.26, is
7 amended to read as follows:

8 Section 1151.26. A. There is hereby established the Committee
9 of Roofing Examiners, which shall consist of seven (7) members. All
10 members shall be legal residents of the United States and shall be
11 residents of this state. Members shall hold office for terms of two
12 (2) years or until their successors have been appointed and
13 qualified.

14 B. Members of the Committee shall be appointed as follows:

15 1. One member shall be appointed by the Governor and shall be a
16 licensed architect with a minimum of five (5) years' experience in
17 commercial roof design. This member shall be selected from a list
18 of at least three qualified and eligible architects submitted by a
19 state organization representing architects;

20 2. One member shall be appointed by the Governor and shall be a
21 licensed engineer with a minimum of five (5) years' experience in
22 commercial roof design. This member shall be selected from a list of
23 at least three qualified and eligible engineers submitted by a state
24 organization representing engineers;

1 3. Two members shall be appointed by the President Pro Tempore
2 of the Oklahoma State Senate and shall be registered roofing
3 contractors with a valid commercial roofer endorsement, except for
4 the initial appointees who shall be otherwise qualified to hold a
5 commercial roofer endorsement, each who work primarily in commercial
6 roofing contractor work with a minimum of five (5) years' actual job
7 experience in commercial roofing contractor work in this state and
8 who are registered pursuant to the Roofing Contractor Registration
9 Act, and otherwise meet all requirements for endorsement in this
10 act;

11 4. Two members shall be appointed by the Speaker of the
12 Oklahoma House of Representatives and shall be registered roofing
13 contractors and timely hold a residential roofer endorsement, each
14 who work primarily in residential roofing contractor work with a
15 minimum of five (5) years' actual job experience in residential
16 roofing contractor work in this state and who are registered
17 pursuant to the Roofing Contractor Registration Act, and otherwise
18 meet all requirements for endorsement in this act; and

19 5. One member shall be appointed by the Construction Industries
20 Board and shall be a licensed or certified building and construction
21 inspector who is a member of a statewide organization representing
22 certified building inspectors with a minimum of five (5) years'
23 actual job experience in building code inspections. This member
24 shall be selected from a list of at least three qualified and

1 eligible inspectors submitted by a state organization representing
2 inspectors.

3 C. Any vacancy on the Committee shall be filled for the
4 unexpired term as soon as possible in the manner in which that
5 position was originally filled. Members shall continue in office
6 until a successor is appointed by the appointing authority. The
7 appointing authority shall fill all vacancies and unexpired terms in
8 the same manner as the original appointment of the member whose
9 position is to be filled. Such members may be removed by the
10 appointing authority at any time.

11 D. A majority of the Committee shall constitute a quorum for
12 the transaction of business, and the Committee shall elect a chair
13 from its number. Each member shall receive reimbursement for travel
14 expenses in accordance with the provisions of the State Travel
15 Reimbursement Act. The Committee shall meet at least quarterly, and
16 special meetings may be called by the Committee chair or the Board.

17 SECTION 20. AMENDATORY 59 O.S. 2021, Section 1151.27, is
18 amended to read as follows:

19 Section 1151.27. The Committee of Roofing Examiners shall:

20 1. Assist and advise the Construction Industries Board on all
21 matters relating to the formation of rules and standards in
22 accordance with the provisions of the Roofing Contractor
23 Registration Act and the provisions of the commercial and

24

1 residential roofer endorsements of the Roofing Contractor

2 Registration Act;

3 2. Assist and advise the Board in prescribing and adopting
4 forms for registration and endorsement applications;

5 3. Assist and advise the Board on the examinations for
6 applicants for a commercial or residential roofer endorsement of the
7 Roofing Contractor Registration Act and rules thereof, and on all
8 matters relating to the commercial and residential roofer
9 endorsement provisions of the Roofing Contractor Registration Act;

10 4. Assist and advise the Board on establishment of standards
11 and procedures for continuing education requirements for a
12 commercial or residential roofer endorsement and procedures for all
13 matters pertaining to the formation of rules;

14 5. Approve applications for continuing education classes or
15 credits for a commercial or residential roofer endorsement, and
16 assist and advise the Board on establishment of standards and
17 procedures for the approval of continuing education provider
18 applications;

19 6. In its discretion, issue an advisory opinion to any
20 registrant, governmental official or entity substantially affected
21 by a rule or statute enforceable by the Board;

22 7. ~~Hear requests for reconsideration of registration and~~
23 ~~endorsement applications denied or refused by the registrar;~~

1 ~~8.~~ When deemed necessary by the Committee, appoint a member of
2 the Committee to assist in investigating an alleged violation of the
3 provisions of the Roofing Contractor Registration Act and of any
4 rules promulgated pursuant thereto. Such member then would be
5 disqualified from participation as a Roofing Hearing Board member in
6 the same matter brought before the Roofing Hearing Board for
7 adjudication;

8 ~~9.~~ 8. Develop the requirements for issuance of a registration
9 and endorsement by reciprocity to an applicant who is currently
10 licensed or registered to engage in roofing contractor work in
11 another state for recommendation to the Board for its rulemaking
12 process;

13 ~~10.~~ 9. Recommend to the Board that the Board enter into a
14 written reciprocity agreement with another state if the requirements
15 for registration and endorsement in the other state are deemed by
16 the Committee to be substantially the same or equivalent to the
17 requirements for obtaining an original registration and endorsement
18 in force in this state at the date of such registration and:

- 19 a. that one (1) year immediately prior to the date of
20 payment of the required fee the applicant lawfully
21 engaged in roofing contractor work within and under
22 the laws of the state pursuant to a license or
23 registration issued thereby authorizing such roofing
24 work,

1 b. that no disciplinary matters are pending against the
2 applicant in any city, state, country, territory or
3 province, and relating to the roofing trade in which
4 the applicant seeks reciprocity,

5 c. that the registration being reciprocated was obtained
6 by equivalent or substantially the same requirements
7 in the state wherein it was issued,

8 d. that there is a written agreement between the states
9 with equivalent or substantially similar registration
10 and endorsement requirements, and

11 e. that the applicant meets all other requirements of the
12 Construction Industries Board Act, including payment
13 of the applicable license fee;

14 ~~11.~~ 10. Have such other powers and duties as are necessary to
15 implement the commercial and residential roofer ~~endorsement~~
16 endorsements of the Roofing Contractor Registration Act; and

17 ~~12.~~ 11. Assist and advise the Board in such other matters as
18 requested thereby.

19 SECTION 21. AMENDATORY 59 O.S. 2021, Section 1151.28, is
20 amended to read as follows:

21 Section 1151.28. A. The designee of the Construction
22 Industries Board, as chair, and the Committee of Roofing Examiners
23 shall act as the Roofing Hearing Board and shall comply with the
24

1 provisions of the Construction Industries Board Act, rules and
2 Article II of the Administrative Procedures Act.

3 B. Any administrative hearing on suspensions, revocations or
4 fines shall be conducted by a hearing examiner appointed by the
5 Construction Industries Board. The hearing examiner's decision
6 shall be a final decision which may be appealed to a district court
7 in accordance with the Administrative Procedures Act and the
8 Construction Industries Board Act and rules and regulations.

9 C. The Roofing Hearing Board may, upon its own motion, and
10 shall, upon written complaint filed by any person, investigate and
11 conduct hearings on the business transactions of any roofing
12 contractor, firm or any person soliciting or engaging in roofing
13 contractor work.

14 D. The Roofing Hearing Board may conduct hearings on citations
15 issued to any person pursuant to the Roofing Contractor Registration
16 Act, applications for suspension and revocation of a registration or
17 endorsement.

18 E. The Construction Industries Board shall suspend or revoke or
19 may refuse to issue or renew any license or registration under the
20 commercial or residential roofer endorsement provisions of the
21 Roofing Contractor Registration Act for any of the following
22 standards of the Roofing Contractor Registration Act:

23 1. Making a material misstatement in the application for ~~an~~
24 registration, endorsement, or the renewal of an endorsement;

2. Obtaining any registration or endorsement by false or fraudulent representation;

3. Loaning or allowing the use of such registration or endorsement by any other person or illegally using a registration or an endorsement;

4. Demonstrating incompetence to act as a commercial or residential roofing contractor or Labor-only crew;

5. Violating any provisions of the Roofing Contractor Registration Act, or any rule or order prescribed by the Construction Industries Board pursuant to the provisions of the Roofing Contractor Registration Act; or

6. Willfully failing to perform normal business obligations without justifiable cause.

F. Any person whose endorsement or registration has been revoked by the Roofing Hearing Board may apply for a new license one (1) year from the date of such revocation.

SECTION 22. REPEALER Section 5, Chapter 368, O.S.L. 2025, is hereby repealed.

SECTION 23. This act shall become effective January 1, 2027.

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